

BECM 3107

CONSTRUCTION CONTRACT AND LAW

Term Final Exam Study Guide

Easy Explanation + Bangla Meaning + Memorizing Techniques

সহজ ব্যাখ্যা, প্রয়োজনীয় বাংলা অর্থ, Mnemonic এবং Exam Practice

This guide is designed for:

Quick conceptual understanding before the term final exam

Active recall, mnemonic-based memorization and written-answer practice

Bilingual understanding while preserving the course terminology in English

Based strictly on the uploaded 87-page course handout

Prepared as an exam-focused companion, not a substitute for the original slides

Course Roadmap - পুরো কোর্সের সহজ মানচিত্র

Course handout reference: pages 5-87

Topic	সহজ অর্থ	Memory Key
Introduction to Law	আইনের উৎস এবং কাজ	Source - State - System
Organs of the State	রাষ্ট্রের তিন বিভাগ	ELJ
Common Law vs Civil Law	Case-based বনাম Code-based system	Case vs Code
Construction Law	Law, procurement route এবং administration	LRA
Contract Basics	Contract-এর অর্থ, form ও type	Agreement + Legal effect
Elements of Contract	Offer, Acceptance, Consideration, Intention	OACI
Contractual Terms	Express, implied, condition, warranty	CWI
Validity Problems	Mistake, misrepresentation, duress ইত্যাদি	Capacity - Consent - Legality
Remedies	Contract breach হলে প্রতিকার	CEA

How to use this PDF

Step 1: Read the easy explanation.

Step 2: Close the PDF and recall the mnemonic.

Step 3: Answer the practice question using DREC: Definition - Rule - Example - Conclusion.

Step 4: Review again after 1 day, 3 days and 7 days.

1. Introduction to Law - আইনের পরিচয়

Course handout reference: pages 9

A society or country may receive its law from several sources. The slides identify religious requirements, customs and local practices, political-economic doctrines, Parliament and case law or judge-developed law.

Main Sources of Law

Source	বাংলা অর্থ / সহজ ব্যাখ্যা
Religious law	ধর্মীয় বিধান থেকে উদ্ভূত আইন
Customary law	স্থানীয় রীতি, অভ্যাস ও প্রথা থেকে গঠিত আইন
Political/economic doctrines	Marxist, Socialist বা Communist মতবাদভিত্তিক আইন
Parliament	নির্বাচিত সদস্যদের মাধ্যমে প্রণীত আইন
Case law	বিচারকের সিদ্ধান্ত বা আদালতের নজির থেকে গঠিত আইন

Memorizing technique

Religion - Custom - Doctrine - Parliament - Judge

বাংলায়: ধর্ম - প্রথা - মতবাদ - সংসদ - বিচারক

Exam-ready definition

Law is a body of rules recognized and enforced by the state to regulate conduct and resolve disputes.

এই সংজ্ঞাটি সহজ বোঝার জন্য; পরীক্ষায় course slide-এর listed sources অবশ্যই উল্লেখ করবেন।

2. Organs of the State - রাষ্ট্রের অঙ্গসমূহ

Course handout reference: pages 10-11

Organ	Function / কাজ
Executive - নির্বাহী বিভাগ	Carries out laws and makes policies. আইন বাস্তবায়ন ও নীতি প্রণয়ন করে।
Legislature - আইনসভা	Makes laws through Parliament and Members of Parliament. আইন তৈরি করে।
Judiciary - বিচার বিভাগ	Applies and interprets law through judges and courts. আইন প্রয়োগ ও ব্যাখ্যা করে।

Mnemonic: ELJ**Executive executes law****Legislature legislates law****Judiciary judges and interprets law**

বাংলায়: চালায় - বানায় - বিচার করে

3. Legal Systems and Classification of Law - আইনব্যবস্থা ও শ্রেণিবিভাগ

Course handout reference: pages 12-20

Common Law vs Civil Law

Common Law	Civil Law
Previous judicial decisions are important.	Written codes are the main foundation.
Judicial precedent is followed.	No equivalent doctrine of binding precedent in the slide summary.
Case law and judges are important sources.	Courts mainly interpret the codes.
Laws are not fully codified.	Laws are codified.
Jury system is a traditional feature.	Code-based structure is emphasized.

Memory key**Common Law = Previous Case****Civil Law = Written Code**

Classification of English Law in the handout

- Civil law and criminal law
- Case law or judge-made law
- Public law and private law
- Substantive law and procedural law
- Law of equity, including trusts and land law
- Statutory law, such as company law and company legislation

4. Construction Law - নির্মাণ আইন

Course handout reference: pages 21

The slide presents construction law as a combination of three practical areas: relevant bodies of law, procurement routes and contract administration.

Area	Included topics
Law	Contract law, commercial law, tort, intellectual property, trust and land law
Procurement Route	Traditional, Design & Build, Management and Partnership
Contract Administration	Standard forms, claims for time/variation/loss/damage and contract administration

Mnemonic: LRA

L = Law

R = Procurement Route

A = Contract Administration

5. What is a Contract? - Contract কী?

Course handout reference: pages 24-27

Core definition from the handout

A contract is an agreement between two or more parties which is intended to be legally binding.

সহজ বাংলা: দুই বা ততোধিক পক্ষের এমন agreement, যা তারা আইনগতভাবে মানতে বাধ্য।

How can a contract be made?

Method	Example / সহজ ব্যাখ্যা
Writing	Land or property purchase; লিখিত দলিল বা agreement
Verbal communication	Auction-এর মতো মৌখিক যোগাযোগ
Conduct	Checkout বা কাজের মাধ্যমে সম্মতি প্রকাশ

Mnemonic: WVC

Write - Voice - Conduct

লিখে - বলে - করে

Bilateral vs Unilateral Contract

Bilateral Contract	Unilateral Contract
Each party assumes an obligation.	Only one party initially assumes an obligation.
Promise is exchanged for another promise.	Promise is accepted by performing the required act.
Example: seller promises to sell and buyer promises to buy.	Example: reward for finding a lost purse.
Bi = both sides promise.	Uni = one promise, another person performs.

6. Four Elements of a Contract - Contract-এর চারটি উপাদান

Course handout reference: pages 28

Element	সহজ অর্থ
1. Offer	স্পষ্ট প্রস্তাব
2. Acceptance	প্রস্তাবটি নিঃশর্তভাবে গ্রহণ
3. Consideration	মূল্যবান বিনিময় বা প্রতিদান
4. Intention to create legal relations	আইনগতভাবে বাধ্য হওয়ার উদ্দেশ্য

Most important mnemonic: OACI

O = Offer

A = Acceptance

C = Consideration

I = Intention

বাংলায় মনে রাখুন: **Offer Accept** করলে **Consideration** ও **Intention** চাই।

7. Offer - প্রস্তাব

Course handout reference: pages 29-35

A communication is treated as an offer when it states the terms on which the offeror is prepared to contract and clearly indicates an intention to be bound if the offeree accepts those terms.

Term	বাংলা অর্থ
Offeror	যিনি offer বা প্রস্তাব করেন
Offeree	যিনি offer গ্রহণ করার সুযোগ পান
Terms	মূল্য, কাজ, সময় বা অন্যান্য শর্ত
Bound	আইনগতভাবে বাধ্য হওয়া

Invitation to Treat (ITT)

Advertisements, price tags and shop displays are generally invitations to treat, not legal offers. They invite the customer to make an offer. A mistaken displayed price may therefore be corrected, and the item need not be sold at that mistaken price.

Difference

Offer accepted হলে **contract** গঠিত হতে পারে।

Invitation to Treat অন্য ব্যক্তিকে **offer** করতে আহ্বান জানায়।

Termination or withdrawal of an offer

- End of a specified time
- End of a reasonable time
- Failure of a precondition
- Rejection
- Counter-offer
- Death of offeror or offeree in relevant circumstances
- Withdrawal before acceptance

The handout contrasts unilateral and bilateral offers: once performance of a unilateral offer has started, the offeror cannot revoke it during performance; a bilateral offer may be withdrawn before acceptance.

8. Acceptance - গ্রহণ

Course handout reference: pages 36-40

Definition

Acceptance consists of words or conduct showing the offeree's unconditional intention to consent to the offer on the proposed terms.

সহজ বাংলা: offer-এর শর্ত পরিবর্তন না করে সম্পূর্ণভাবে মেনে নেওয়া।

What is not acceptance?

1. Counter-offer - it terminates the original offer; case listed: Hyde v Wrench [1840].
2. Rejection - it terminates the offer.
3. Request for more information - this is not itself acceptance.

Communication of acceptance

- Email, telephone, fax and SMS: acceptance must actually reach the offeror.
- Letter: under the postal rule, acceptance is deemed effective when properly posted, even if the letter is later lost.
- Silence is not acceptance. The offeror cannot impose a rule that no reply means consent; case listed: Felthouse v Bindley [1862].
- Unilateral contracts are usually accepted by conduct, such as performing the requested act.

Memory key

Instant communication = must reach

Post = effective when properly posted

Silence = no acceptance

9. Consideration - প্রতিদান বা মূল্যবান বিনিময়

Course handout reference: pages 41-44

Consideration means what one party gives to another. There must be some exchange. It need not equal the full monetary value of the item, but it must have some measurable value.

Easy idea

Consideration = Give and Get

এটি টাকা, পণ্য, কাজ, সেবা বা **promise** হতে পারে।

Rules of consideration

1. Consideration must be sufficient but need not be adequate. Courts do not normally compare whether the parties received equal economic value. Case listed: Chappell & Co Ltd v Nestle Co Ltd [1959].
2. Past consideration is not valid consideration. A promise made only after an act has already been completed is generally not enforceable on that past act.
3. Consideration must come from the person who wants to enforce the contract, namely the promisee. Case listed: Tweddle v Atkinson [1861].

Mnemonic: SPP

S = Sufficient, not necessarily adequate

P = No Past consideration

P = From the Promisee

বাংলায়: যথেষ্ট - অতীত নয় - **Promisee** থেকে

10. Intention to Create Legal Relations - আইনগত সম্পর্ক তৈরির উদ্দেশ্য

Course handout reference: pages 45-47

Offer, acceptance and consideration alone do not make every agreement enforceable. The parties must also intend their arrangement to create a legal relationship.

Type of agreement	Presumption in the handout
Business agreement	There is normally an intention to create legal relations.
Social agreement between friends	There is normally no legal intention.
Domestic or family agreement	There is normally no legal intention.

Memory key

Business = Binding

Friends/Family = usually social, not legally binding

Letters of Intent, Memoranda of Understanding and Letters of Comfort are described in the handout as usually not legally binding because they may not create an intention to be bound. The slide warns that Letters of Intent can be problematic in construction.

11. Contents and Incorporation of Contract Terms - Contract-এর শর্তাবলি

Course handout reference: pages 48-57

The terms of a contract describe the duties and obligations assumed by each party. The handout calls terms the heart or contents of the contract.

Written terms may be incorporated by

1. Signature
2. Reasonable notice
3. A previous course of dealing

Implied terms

Type	Meaning and example
Implied in fact	A term both parties would probably have intended if they had considered it; it may have been omitted because it appeared obvious.
Implied in law	A term that law requires in certain types of contract, sometimes regardless of the parties' wishes.
Implied by custom	A term normally included under local custom, such as use of certified quality cement in the construction example.
Implied by trade usage	A term routinely included in a particular trade, such as providing a structural safety certificate upon completion in the slide example.

Mnemonic: F-L-C-T

Fact - Law - Custom - Trade usage

12. Condition, Warranty and Innominate Term - Contractual term-এর ধরন

Course handout reference: pages 58-61

Term	Effect of breach
Condition	A very important term. The innocent party may treat the contract as repudiated, stop further performance and sue for damages.
Warranty	A less important term. The innocent party may claim damages but cannot terminate the contract merely for that breach.
Innominate term	Effect depends on the seriousness of the consequences: serious breach acts like a condition; minor breach acts like a warranty.

Mnemonic: CWI

C = Condition

W = Warranty

I = Innominate term

Construction analogy

Condition = structural foundation

Warranty = paint finish

Innominate term = classification depends on how serious the actual consequence is

13. Exemption Clauses - দায় সীমিত বা বাদ দেওয়ার শর্ত

Course handout reference: pages 62

An exemption clause is a contract term used to avoid or limit liability for certain breaches.

Clause	Purpose
Limitation clause	Limits the amount or extent of liability for damages.
Exclusion clause	Attempts to exclude liability for damages.

Vocabulary	বাংলা অর্থ
Liability	আইনগত দায়
Exemption	দায় থেকে অব্যাহতি
Limitation	দায়ের সীমাবদ্ধতা

Vocabulary	বাংলা অর্থ
Exclusion	দায় সম্পূর্ণ বাদ দেওয়া

14. Factors Affecting Validity of Contract - Contract-এর বৈধতায় প্রভাবকারী বিষয়

Course handout reference: pages 63-82

A. Incapacity - আইনগত সক্ষমতার অভাব

The handout identifies minors, persons with mental incapacity and corporations as persons or organizations that may have no capacity or only limited capacity to contract. It states the basic common-law rule that contracts generally do not bind minors, subject to exceptions.

B. Mistake - ভুল

Mistake arises when parties are mistaken about a contract term or an important fact. A fundamental mistake may make the contract void ab initio, meaning void from the beginning.

Type of mistake	Meaning
Common mistake	Both parties make the same fundamental mistake of fact.
Mutual mistake	Each party makes a different mistake; the slide refers to Raffles v Wichelhaus.
Unilateral mistake	Only one party is mistaken and the other is not.

C. Misrepresentation - ভুল বা মিথ্যা তথ্য দিয়ে contract করানো

Misrepresentation is an untrue statement of fact by one party that induces the other party to enter the contract. The contract is voidable, and the innocent party may have a right to damages.

Type	Meaning	Remedy in handout
Fraudulent	The maker knows the statement is false; dishonest statement.	Rescission + damages
Negligent	The false statement is made carelessly.	Rescission + damages
Innocent	The maker believes it is true and has reasonable grounds.	Rescission only

Mnemonic: FNI

Fraudulent - Negligent - Innocent

D. Illegality - বেআইনি বা অনৈতিক উদ্দেশ্য

A contract is void or invalid if its performance is illegal or immoral. The slides list contracts involving criminal activities, immoral activities or conduct against public policy, including restraint of trade clauses as an example category.

E. Duress - অবৈধ চাপ বা হুমকি

Duress occurs when one party uses an improper threat or act to obtain the contract.

1. Pressure was exerted on the contracting party.
2. The pressure was illegitimate.
3. The pressure induced the claimant to enter the contract.
4. The claimant had no real choice.
5. The claimant protested at the time or shortly after the contract was made.

Mnemonic: PIINP

Pressure - Illegitimate - Induced - No real choice - Protest

F. Undue Influence - বিশ্বাসের অপব্যবহার

Undue influence arises when a person who shares a special relationship of trust with the victim abuses that confidence to persuade the victim to sign or not sign a contract.

Type	Meaning
Actual undue influence	The claimant proves that the transaction resulted from actual influence by the other party.
Presumed undue influence	Influence may be presumed because a pre-existing relationship of confidence caused one party to place trust in the other.
Fiduciary relationship	A relationship of special trust and confidence.

15. Remedies for Breach of Contract - Contract ভঙ্গের প্রতিকার

Course handout reference: pages 83-86

The handout groups remedies into common-law remedies, equitable remedies and remedies agreed between the parties.

Category	Meaning / examples
Common-law remedies	Damages are the usual remedy. Money aims to compensate the innocent party and place that party in the position expected if the contract had been performed.
Equitable remedies	Used at the court's discretion where common-law damages are inadequate. Includes specific performance and injunction.
Agreed remedies	Remedies provided for in the contract itself.

Mnemonic: CEA

C = Common-law remedies

E = Equitable remedies

A = Agreed remedies

Memory phrase

Money - Make - Mentioned

Common law = money damages

Equity = make a party perform or stop an act

Agreed = mentioned beforehand in the contract

16. Important Vocabulary - প্রয়োজনীয় শব্দের বাংলা অর্থ

Course handout reference: pages throughout the handout

English	বাংলা অর্থ	English	বাংলা অর্থ
Law	আইন	Legally binding	আইনগতভাবে বাধ্যতামূলক
Party	চুক্তির পক্ষ	Agreement	সমঝোতা বা সম্মতি
Offer	প্রস্তাব	Offeror	প্রস্তাব প্রদানকারী
Offeree	প্রস্তাব গ্রহণকারী	Acceptance	গ্রহণ বা সম্মতি
Obligation	দায়িত্ব বা বাধ্যবাধকতা	Consideration	প্রতিদান বা মূল্যবান বিনিময়
Intention	উদ্দেশ্য	Presumption	আইনগত পূর্বানুমান
Judicial precedent	পূর্ববর্তী বিচারিক নজির	Terms	চুক্তির শর্তাবলি
Breach	চুক্তিভঙ্গ	Repudiate	চুক্তি বাতিল/প্রত্যাখ্যান হিসেবে গণ্য করা
Liability	আইনগত দায়	Damages	আর্থিক ক্ষতিপূরণ
Remedy	আইনগত প্রতিকার	Void	সম্পূর্ণ অকার্যকর
Voidable	ক্ষতিগ্রস্ত পক্ষ চাইলে বাতিল করতে পারে	Void ab initio	শুরু থেকেই বাতিল
Rescission	চুক্তি বাতিল করে আগের অবস্থায় ফেরা	Misrepresentation	ভুল বা মিথ্যা তথ্য উপস্থাপন
Duress	অবৈধ চাপ বা হুমকি	Undue influence	বিশ্বাসের অপব্যবহারের মাধ্যমে প্রভাব
Fiduciary relationship	বিশেষ বিশ্বাস ও দায়িত্বের সম্পর্ক	Injunction	কোনো কাজ করা বা না করার আদালতের নির্দেশ
Specific performance	চুক্তির কাজ সম্পন্ন করার আদালতের আদেশ	Incorporation	চুক্তির অংশ হিসেবে অন্তর্ভুক্তকরণ
Condition	মৌলিক/গুরুত্বপূর্ণ শর্ত	Warranty	তুলনামূলক গৌণ শর্ত
Innominate term	পরিণামের গুরুত্বনির্ভর মধ্যবর্তী শর্ত	Exemption clause	দায় সীমিত বা বাদ দেওয়ার শর্ত
Capacity	চুক্তি করার আইনগত সক্ষমতা	Induce	কাউকে সিদ্ধান্ত নিতে প্রভাবিত করা

17. Exam Answer Technique - লিখিত পরীক্ষায় উত্তর সাজানোর নিয়ম

DREC Formula

D = Definition

R = Rule or elements

E = Example or case from the slides

C = Conclusion

Example structure: Explain consideration

1. Definition: State that consideration is what one party gives to another and involves an exchange.
2. Rules: Explain sufficient but not necessarily adequate, no past consideration and consideration from the promisee.
3. Example/case: Add one slide example or the listed case name.
4. Conclusion: State why consideration is necessary for an enforceable contract.

High-mark checklist

Use the exact legal term first, then explain it in simple words.

Write headings and numbered elements.

Add the consequence or remedy, not only the definition.

Use a short example from construction or the course slides.

Do not invent facts about a case that are not in the handout.

18. Practice Questions - সম্ভাব্য পরীক্ষার প্রশ্ন

1. Explain the three organs of the state and their functions.
2. Distinguish between Common Law and Civil Law.
3. Explain the scope of Construction Law shown in the course handout.
4. Define a contract and explain the ways in which a contract may be made.
5. Distinguish between bilateral and unilateral contracts.
6. Explain the four essential elements of a contract.
7. Distinguish an offer from an invitation to treat.
8. Explain the ways in which an offer may terminate.
9. Discuss the communication of acceptance and the postal rule.
10. Can silence amount to acceptance? Explain with the listed case.
11. Define consideration and explain its rules.
12. Explain intention to create legal relations in business and domestic agreements.
13. Explain how written terms are incorporated into a contract.
14. Discuss the different forms of implied terms.
15. Distinguish condition, warranty and innominate term.
16. What is an exemption clause? Distinguish limitation and exclusion clauses.
17. Explain the different types of mistake.

18. Define misrepresentation and discuss its types and remedies.
19. Explain the conditions required for duress.
20. Distinguish actual and presumed undue influence.
21. Explain common-law, equitable and agreed remedies for breach of contract.

19. One-Page Quick Revision - শেষ মুহূর্তের Revision Sheet

Topic	Recall line
Sources of law	Religion - Custom - Doctrine - Parliament - Judge
Organs of state	ELJ: Executes - Legislates - Judges
Systems	Common = Case; Civil = Code
Construction law	LRA: Law - Route - Administration
Contract methods	WVC: Writing - Verbal - Conduct
Contract elements	OACI: Offer - Acceptance - Consideration - Intention
Consideration rules	SPP: Sufficient - no Past - Promisee
Implied terms	Fact - Law - Custom - Trade usage
Contractual terms	CWI: Condition - Warranty - Innominate
Misrepresentation	FNI: Fraudulent - Negligent - Innocent
Duress	PIINP: Pressure - Illegitimate - Induced - No choice - Protest
Remedies	CEA: Common law - Equity - Agreed

Active Recall Test

1. Without looking, write the four elements of a contract.
2. Explain offer vs invitation to treat in two sentences.
3. Write three rules of consideration.
4. Write the remedy for breach of condition and warranty.
5. Write the three types of misrepresentation and their remedies.
6. Write five conditions for duress.
7. Write three categories of remedy and one example for each.

Spaced repetition plan

Day 1: Learn

Day 3: Recall without notes

Day 7: Write a timed answer

Day 14: Final mixed revision

20. Source and Scope Note - উৎস ও সীমা

This study guide is derived from the uploaded document titled “1.0 - Construction Contracts and Law.pdf”, containing 87 pages of BECM 3107 course slides. It preserves the terminology, examples, listed case names and organization supported by that handout.

The wider course-content slide also lists Tort Law, ADR, standard construction contract forms, liquidated damages, penalties, warranties, guarantees, tender/contract-document preparation, termination, close-out, commissioning, insurance and bonding. However, the detailed slides in this uploaded file concentrate mainly on introduction to law and contract law through remedies. Topics that are only named in the outline are not expanded here beyond what the file supports.

Final reminder

Study the original slides together with this guide, especially diagrams and lecturer emphasis. For case-law questions, use only the facts and principles taught by your lecturer or available in the course handout.

Best wishes for your term final exam

Read - Recall - Write - Review